

[9 EDW. 7.]

Provisional Order (Marriages)
Confirmation Act, 1909.

[Ch. cxxv.]



CHAPTER cxxv.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Provisional Order (Marriages) Act 1905.

A.D. 1909.

[16th August 1909.]

WHEREAS the Right Honourable Herbert John Gladstone one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Provisional Order (Marriages) Act 1905:

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c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereunto annexed is hereby confirmed.

Order in
schedule
confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1909.

Short title.

A.D. 1909.

SCHEDULE.

WHEREAS power is given to a Secretary of State by the Provisional Order (Marriages) Act 1905 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt:

And whereas the church of St. James situate at New Bradwell in the parish of Stantonbury (sometimes described as Stantonbury with New Bradwell) in the county of Bucks in the diocese of Oxford has not been licensed for marriages nor has it been substituted for the parish church:

And whereas divers marriages nevertheless have been solemnized in the said church of St. James since its consecration on the Sixth day of December One thousand eight hundred and sixty:

And whereas it is expedient in the circumstances aforesaid to remove all doubts touching the validity of the marriages solemnized in the said church of St. James:

Now therefore I the Right Honourable Herbert John Gladstone one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Provisional Order (Marriages) Act 1905 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect:—

1. All banns of matrimony and marriages published and solemnized between the Sixth day of December One thousand eight hundred and sixty and the date of this Order in the church of St. James situate at New Bradwell in the parish of Stantonbury (sometimes described as Stantonbury with New Bradwell) in the county of Bucks in the diocese of Oxford shall be and shall be deemed to have been as valid as if they had been published and solemnized in a church in which banns might be published and marriages solemnized lawfully.

2. A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriages.

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3. The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence. A.D. 1909

Given under my hand this Twentieth day of May One thousand nine hundred and nine.

(L.S.)

H. J. GLADSTONE.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

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